

2020 P L C (C.S.) 1398

[Lahore High Court]

Before Jawad Hassan, J

ZAKA ULLAH KHAN

Versus

SECRETARY PRIMARY AND SECONDARY HEALTHCARE and others

Writ Petition No.36633 of 2020, decided on 19th August, 2020.

(a) Civil service---

---Contract appointment---Scope---Petitioner assailed order passed by respondent whereby he was relieved from service on the basis of being over-age---Petitioner was appointed for a period of one year as a stop gap arrangement---Such appointment did not confer any right on the incumbent for regular appointment or to hold it for an indefinite period---Petitioner, at the time of joining, had accepted all the terms and conditions of his ad hoc employment and could not resile from the same at belated stage---Constitutional petition was dismissed in limine.

Dr. Zaheer Iqbal and others v. Province of Punjab through Chief Secretary and others 2018 PLC (C.S.) 712 distinguished.

Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor 2018 PLC (C.S.) Note-1; Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others 2018 PLC (C.S.) 722; Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others 2017 PLC (C.S.) 488 and Mubashar Majeed v. Province of Punjab and 3 others 2017 PLC (C.S.) 940 rel.

(b) Words and phrases---

---Stop-gap---Meaning.

Advance Law Lexicon 4th Edition, P.4615 and Concise Oxford English Dictionary, Twelfth Edition, P.1422 ref.

Malik Saleem Iqbal Awan for Petitioner.

Barrister Umair Niazi, Additional Advocate-General.

ORDER

JAWAD HASSAN, J.---The Petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging a quasi-judicial order dated 04.08.2020 passed by the Respondent No.1/Secretary Primary and Secondary Healthcare Department pursuant to

directions issued in W.P.No.20509 of 2020 dated 30.04.2020. The Petitioner has also challenged order dated 12.03.2020 passed by the aforesaid Respondent whereby he has disallowed certain pharmacists to work in hospital being overaged.

2. Facts as narrated in the petition are that the Petitioner was appointed as Hospital Pharmacist (BS-17) on ad-hoc basis for a period of one year vide order dated 25.02.2010 on certain terms and conditions. His period of ad hoc employment was extended from time to time and lastly it was extended w.e.f. 17.04.2019 to 12.03.2020. But subsequently vide the impugned letter dated 12.03.2020 the Petitioner was relieved from service on the basis of being over-age. The aforesaid order was assailed by the Petitioner through W.P.No.20509 of 2020 which was disposed of on 30.04.2020 with direction to decide the representation of the Petitioner pursuant to which order dated 04.08.2020 was passed. Hence, this petition.

3. Learned counsel for the Petitioner inter alia contended that the impugned orders are illegal and unlawful; that the Petitioner has served for more than ten years and instead of regularizing his service, he has been relieved by the authority without any legal justification; that neither show-cause notice was given to the Petitioner nor opportunity of hearing was provided to him; that fundamental rights of the Petitioner are being infringed which need consideration of this Court. In order to support his contention, learned counsel has relied on "Dr. Zaheer Iqbal and others v. Province of Punjab through Chief Secretary and others" (2018 PLC (C.S.) 712).

4. On the other hand, learned law officer vehemently opposed the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the Petitioner was employed on ad hoc basis and has no vested to be regularized or extension of his contract period; that the Petitioner was treated as per terms and conditions of his contract employment which he duly accepted at the time of appointment, therefore, now at this stage he cannot deviate from the same.

5. I have heard the arguments and perused the record.

6. Basically the Petitioner has impugned two orders dated 12.03.2020 and 04.08.2020. First order relates to relieving of certain pharmacists from duties including the Petitioner being over age under service rules whereas second order was passed pursuant to directions of this Court. The argument of learned counsel for the Petitioner is that since the Petitioner has served 10 years of his service without any complaint or allegation in performance of his duties therefore, he should be regularized by the Respondents instead of declaring him overage. It is pertinent to mention here that the Respondent No.1 in order dated 04.08.2020 observed that the Petitioner was granted ad hoc appointments on the basis of his performance on yearly basis till 04.04.2019 and after expiry of his period of ad hoc appointment he was relieved from service on 12.03.2020 due to being over-age for further appointment. It was further observed that the appointment was purely on ad-hoc basis, offered while keeping in view the provisions of Rule 22 of Civil Servants (Appointments and Conditions of Service) Rules, 1974. The concluding portion of said order is reproduced hereunder:

"It is pertinent to mention here that Government of Punjab, Services and General Administration Department (Regulation Wing) has Notified amendments in the Punjab Health Department (General Specialist and Miscellaneous Posts) Service Rules, 1981 vide No.SOR(S&GAD)1-11/2011 dated 07.09.2011, wherein the age limit for the appointment of Pharmacists has been determined as 21-28 years with 05 years as general age relaxation. The

Petitioner is over aged now, therefore, was relieved from service vide letter dated 12.03.2020 as he does not fulfil the eligibility criteria as prescribed under Service Rules. Aggrieved by the relieving orders, he obtained injunctive orders from Hon'ble Court on 21.05.2020 in W.P.No.5929/2020 from Lahore High Court, Multan Bench, Multan by concealing the fact that relieving orders have already been issued on 12.03.2020. Thus, he Petitioner is hereby relieved from service with immediate effect."

7. It evinces from the perusal of record that the Petitioner was appointed as Hospital Pharmacist (BS-17) on ad hoc basis vide order dated 25.02.2010 for a period of one year purely as a stop gap arrangement. As per Oxford dictionary, the expression 'stop-gap' means a temporary way of dealing with a problem or satisfying a need. Advance Law Lexicon 4th Edition, P. 4615 describes 'stop gap' in the following manner:

"if an appointment is made to meet the contingency on account of delay in completing the process for regular recruitment to the post due to any reason and it is not possible to leave the post vacant till then, such an appointment can appropriately be called as 'stop gap arrangement'".

According to Concise Oxford English Dictionary, Twelfth Edition, P. 1422, 'stopgap' means a "temporary solution or substitute". The Courts have used the said term in a number of judgments. It is a transitory arrangement or a temporary measure to meet the contingency arising on account of delay in completing the process of regular recruitment to a post (due to any reason), in order to prevent stand-still in the performance of public duties. Such an appointment does not confer any right on the incumbent for regular appointment or to hold it for indefinite period. In the present case, the Petitioner's ad hoc employment was extended from time to time almost with same terms and conditions vide orders dated 14-3-2011, 15-3-2012, 21-3-2013, 9-9-2014, 28-2-2015, 07-03-2016, 01-03-2017, 22-06-2018, 04.04.2019 and lastly on 18.03.2020 for a period from 17.04.2019 to 12.03.2020. The following Clauses were mentioned in all appointment letters of extension, containing terms and conditions which reflect as under:

Even if the post being offered to you continuous, the appointment is only for a period mentioned above from the date of joining and shall automatically terminated on the expiry of the said period or till the availability of a regular/selectee of the Punjab Service Commission, whichever is earlier.

Notwithstanding the condition (i) above, the appointment is subject to termination at any time.

The ad-hoc appointment will not confer any right for regular appointment to the same post nor the service will count towards seniority.

The above Clauses explicitly show that the ad-hoc appointment is only for specific period which shall automatically be terminated on the expiry of period, mentioned in appointment letters and also the Petitioner will not confer any right of regular appointment meaning thereby that the Petitioner has no vested right that his period of service be extended for further period. Furthermore, the Petitioner has not brought on record to show that he approached the concerned authority for seeking regularization during his service.

8. From the above facts and circumstances, I am of the

considered view that the Petitioner, at the time of joining, has accepted all the terms and conditions of his ad-hoc employment, cannot resile from the same at belated stage. I see no illegality or perversity in the impugned orders which have been passed in accordance with law and therefore, cannot be interfered with. I am fortified my view seeking guidance from the judgment passed by the Hon'ble Division Bench of this Court in case titled "Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor" (2018 PLC (C.S.) Note-1) in which it has been held as under:

"It was also made specifically clear that the Employment Contract does not confer on the Appellant any claim/right to permanent employment in the College. In the above situation, the Appellant has himself admitted all the terms and conditions of his Employment Contract, he cannot claim his regularization from this Court rather has rightly been considered to be out of service on the expiry of his contract employment as settled by the parties under the terms of the Employment Contract"

9. This Court in case titled "Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others" (2018 PLC (C.S.) 722) has also held as under:

"The Respondents have invoked clause-4(b), terminated the services of the Petitioner with immediate effect entitling the Petitioner to receive one month's pay in lieu of the quit service as per terms and conditions, therefore, assertions of the learned counsel for the Petitioner that no notice has been served upon the Petitioner, cannot sustain. The law on this point has been settled by the apex Court of the country in the cases of "Government of Balochistan, Department of Health through Secretary, Civil Secretariat, Quetta v. Dr. Zahida Kakar and 43 others" (2005 SCMR 642) and "Major (R) Nisar Ali v. Pakistan Atomic Energy Commission and another" (2004 PLC (C.S.) 758)."

10. The Hon'ble Division Bench of this Court in case titled "Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others" (2017 PLC (C.S.) 488) has held as under:

"the employee, after accepting terms and conditions of his contract employment had submitted his joining report. Service of such employee could be terminated without assigning any reason. Employee had no right to claim extension in his contract period as a vested right. Behaviour of employee remained unsatisfactory towards his superior which resulted into his termination."

In Case titled "Mubashar Majeed v. Province of Punjab and 3 others" (2017 PLC (C.S.) 940) the Hon'ble Division Bench of this Court has also held that

"employee could not claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with services of such employee or continue with the same by tending the contract."

11. Moreover, the judgment produced by the learned counsel for the Petitioner cannot be relied upon being distinguishable from the facts and circumstances of the case as each and every case has its own facts and circumstances.

12. In view of the above, the instant petition, being not maintainable, is hereby dismissed in limine.

SA/Z-7/L Petition dismissed.